

3. **M-CV-0087555 Philadelphia Indemnity Ins. Co. v. Lewis, Deann**

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Release Interpled Funds

Defendants and cross-complainants ("moving parties") Jennifer Flippen-Black and Justin Black move for release of interpled funds. More specifically, moving parties request an order releasing \$25,000 the surety deposited with the court pursuant to this court's October 14, 2025 order. Moving parties ask that \$15,000 of the funds be released to them and that \$10,000 be released to defendant Deann Lewis.

The motion is denied without prejudice as premature. Moving parties' cross-complaint filed September 4, 2024 includes enforcement of claims on contractor's license bonds against several cross-defendants including Jimmy Joseph Gloria. After this motion was filed but prior to the hearing on the motion, the court ordered Angie Brown substituted in as the personal representative of cross-defendant Jimmy Joseph Gloria. There is no evidence this substituted cross-defendant has been served nor has this cross-defendant been dismissed or defaulted. This motion for release of interpled funds effectively seeks final determination of at least one cause of action without notice to one of the parties. The motion is therefore denied without prejudice as it is premature.

4. **M-CV-0092997 Natl. Default Serv. Corp. v. Claimants to Surplus Funds**

Evidentiary Hearing Regarding Claims for Surplus Funds

All claimants to surplus funds from the trustee's sale of real property known as 20308 Paoli Lane, Weimar, California 95736 is required to appear in court on **June 2, 2026 at 8:30 a.m. in Department 42.**

5. **M-CV-0093623 Sunbelt Rentals v. Timothy P Hansen**

Defendants are advised the notice of motion must include notice of the court's current tentative ruling procedures. (Local Rule 20.2.3(C).) While the notice of motion includes a "Notice of Tentative Ruling System," it uses outdated language.

Motion to Set Aside Default

Defendants Timothy P. Hansen and Cheryl L. Hansen, individually and as trustees to the Timothy P. Hansen and Cheryl L. Hansen Revocable Trust dated 8-10-2021 ("moving defendants") move to set aside default entered against them on November 19, 2025. There is no evidence moving defendants served the motion on defendant Diego Ibarra.

The court, on its own motion, continues the motion to set aside default to **June 23, 2026 at 8:30 a.m. in Department 42.** Moving defendants are directed to serve this motion on

defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by June 9, 2026.

6. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Motion to Dismiss

Defendants ESP School Fund, Inc., Energy Saving Pros, Energy Saving Pros Construction, Inc., and Brian Pierce move to dismiss the action against them on the basis that plaintiff failed to bring the action to trial within five years pursuant to Code of Civil Procedure sections 583.310 and 583.360. Moving defendants also seek an order that they are the prevailing parties as to plaintiff. A review of the court's file reveals plaintiff dismissed the moving defendants on December 11, 2025, over one month before this motion was filed. While defendants acknowledge the December 11, 2025 dismissal, they argue the voluntary dismissal was ineffective because the five-year period had already elapsed and they are entitled to mandatory dismissal under Code of Civil Procedure section 583.360. However, defendants did nothing to enforce the five-year statute until after dismissal had already occurred.

Accordingly, this motion to dismiss is denied as moot and the court does not determine moving defendants to be prevailing parties.

7. S-CV-0051379 Nayeri, Parvin v. Regents of the Univ. of Cal.

Defendants' motion for summary judgment or, in the alternative, summary adjudication is dropped from calendar as moot in light of the full dismissal with prejudice filed May 28, 2026.

8. S-CV-0052071 Mustain, William v. Johnson, Richard Wayne

If oral argument is requested, it will be heard in Department 42 at **8:30 a.m.** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval

Plaintiff moves for an order finally approving the parties' class action and PAGA action settlement. No opposition has been filed. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) This motion is supported by insufficient notice.